Adam D. Orford

Fordham University School of Law
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ACADEMIC APPOINTMENTS

Fordham University School of Law – Associate Professor of Law, 2025-present
University of Georgia School of Law – Assistant Professor of Law, 2021-2025

EDUCATION

University of California, Berkeley – Ph.D. 2021 (Energy and Resources)
University of California, Berkeley – Master of Public Policy 2018
Columbia University School of Law – Juris Doctor 2006; EIC, *Columbia Journal of Environmental Law*
Arizona State University – B.A. 2002 (major: Italian, minor: music), *summa cum laude*

SCHOLARSHIP

ACADEMIC PUBLICATIONS

Constricting Remedies for Presidential Impoundment, __ SEATTLE U. L. REV. __ (2026) (forthcoming)

The Destruction of the Climate Spending State, 51 COLUMBIA J. ENV'T L. 1 (2026)

Overselling BIL and IRA, 51 ECOLOGY L. Q. 633 (2025)

Legal Reforms for a Low-Carbon Electric Grid: Lessons from the United States, in RESEARCH HANDBOOK ON CLIMATE CHANGE & INFRASTRUCTURE LAW (Romany Webb ed., 2025)

Blue Carbon Law, 12 SEA GRANT LAW & POLICY J. 9 (2024)

Blue Carbon, Red States, and Paris Agreement Article 6, 6 FRONTIERS IN CLIMATE 1355224 (2024)

Natural Gas and Net Zero: Mutually Exclusive Pathways for the Southeast, 39 GEORGIA STATE U. L. REV. 1033 (2023)

Rate Base the Charge Space: The Law of Utility EV Infrastructure Investment, 48 COLUMBIA J. ENV'T L. 1 (2022)

Clean Air Act Section 115: Is the IPCC a "Duly Constituted International Agency"?, 34 GEORGETOWN ENV'T L. REV. 215 (2022)

Nation's Business and the Environment: the U.S. Chamber's Changing Relationships with Pollution, "Ecologists," Regulations, and Renewables, 1945-1981, 12 J. ENV'T STU. & SCI. 100 (2021)

The Clean Air Act of 1963: Postwar Environmental Politics and the Debate Over Federal Power, 27 UC L. ENV'T J. 1 (2021) (funding from JFK Library Foundation Sorensen Research Fellowship)

Tools for Regulators in a Changing Climate: Proposed Standards, State Policies, and Case Studies from the Western Grid, 32 GEORGETOWN ENV'T L. REV. 227 (2020)

WORKS IN PROGRESS

Climate Change Law: A Coursebook, book proposal draft under review for contract

SHORT WORKS

When Platforming Climate Skepticism Breaks the Law, VJEL EcoPerspectives Blog, Sep. 2025

Comment Letter: DOE Climate Science Report, Sep. 2025

Attending COP29 – blog series, Medium & Environmental Law Prof Blog, Oct.-Dec. 2024

Climate Litigation, Financial Climate Podcast (with Beth Burch), Nov. 2023

Power to the People: Primer on NEPA and Transmission Lines, 29 NAT. GAS & ELECTRICITY 16 (2013)

Orford, A., Till, D., & Timmons, D., Examining Oil and Gas Policy in President Obama's Second Term, 29 NATURAL GAS & ELECTRICITY 1 (2013)

Hydraulic Fracturing & Water: Considering the Water Resources Impacts of Hydraulic Fracturing, 85 THE WATER REPORT 4 (2011)

Hydraulic Fracturing: Legislative and Regulatory Trends, 279 ENV'T COUNSELOR 2 (2011)

Fractured: The Road to the New EPA Fracking Study, 267 ENV'T COUNSELOR 1 (2011)

Issacharoff, S. & Orford, A., A Primer on American Law of Jurisdiction and Forum Selection, GLOBAL JUSTICE FORUM (Apr. 2005)

RESEARCH PRESENTATIONS

Constricting Remedies for Presidential Impoundment, Northwestern University Energy Innovation Lab, Apr. 2026

Air Pollution Control, NYC Air Quality and Health Summit, Apr. 2026

Environmental Impacts of AI, TedX @ Fordham, March 2026

Constricting Remedies for Presidential Impoundment, Early Climate Law Scholars, UCSD, November 2025

Constricting Remedies for Presidential Impoundment, Early Env't Law Scholars, U. Florida, November 2025

Constricting Remedies for Presidential Impoundment, Berle XVIII Symposium, Seattle U., October 2025

The Destruction of the Climate Spending State, Fordham Law Faculty Workshop, September 2025

The Destruction of the Climate Spending State, Berkeley-Penn Energy Law Scholars Workshop, June 2025

A Canadian Climate Hammer, CU Denver environmental law scholarship workshop, April 2024

Decarbonizing the U.S. Grid, CLIMA Centre for Climate Change Law (Copenhagen), April 2024

Overselling BIL and IRA, American Tax Policy Institute (NYC), March 2024

Transatlantic Just Transition Workshop, Indiana University Berlin Extension, March 2024

Overselling BIL and IRA, Fordham Law School, November 2024

Overselling BIL and IRA, William & Mary College of Law, September 2024

Overselling BIL and IRA, Wake Forest University Faculty Exchange,

Oil Pollution Act of 1924, World Congress on Environmental History (Oulu, Finland), August 2024

Low-Carbon Electricity: Legal Barriers and Opportunities, U. Penn Energy Scholars Workshop, June 2024

Overselling BIL and IRA, ASU SRP Sustainability Conference, May 2024

Low-Carbon Electricity: Legal Barriers and Opportunities, UGA RBC Climate Research Slam, April 2024

Social Science Research for the EV Transition, Georgia Network for Electric Mobility, March 2024

Overselling BIL and IRA, Wake Forest-UGA Faculty Exchange, March 2024

Overselling BIL and IRA, Texas A&M Energy Law Currents Symposium, March 2024

Oil Pollution Act of 1924, CU Denver environmental law scholarship workshop, Feb. 2024

Blue Carbon Law, Vermont Env't L. J. Symposium, Nov. 2023

Overselling BIL and IRA, CU Denver environmental law scholarship workshop, Oct. 2023

Blue Carbon Law, Emory-UGA Faculty Exchange, July 2023

Section 115 and the IJC, Sabin Colloquium on Innovative Environmental Law Scholarship, Columbia Law School, May 2023

Natural Gas and Net Zero, UGA-GSU Junior Faculty Exchange, April 2023

Natural Gas and Net Zero, GSU Law Review Symposium, March 2023

Natural Gas and Net Zero, CU Denver environmental law scholarship workshop, Feb. 2023

Rate Base the Charge Space, CU Denver environmental law scholarship workshop, Sep. 2022

Is the IPCC a 'Duly Constituted International Agency'?, UGA-Florida Law junior faculty exchange, Mar. 2022

The Conservative Reaction to Earth Day, UGA Dirty History Workshop, Jan. 2022

Is the IPCC a 'Duly Constituted International Agency'?, CU Boulder Environmental Law Workshop, Aug. 2021

Emerging Vehicle Electrification Technology and Policy, California Plug-in EV Collaborative, July 2016

EV/VGI Policy Developments, Second Annual California Multi-Agency Update on Vehicle-Grid Integration Research, Dec. 2015

CONFERENCE ORGANIZATION AND GRANT APPLICATIONS

Principal Organizer, Seminar Series on Environmental Sciences, Humanities, and Law, UGA (2024-2026) (Session 1: Agrivoltaics, Session 2: Coastal Resiliency, Session 3: Urban Heat Management)
- Recipient, Willson Center for the Humanities conference grant, June 2024 (three years funding)

Principal Organizer, Blue Carbon Law Symposium, UGA, May 2023
- Recipient, National Sea Grant Law Foundation Symposium Grant, Dec. 2022

Principal Organizer, Georgia Climate Conference: Law, Policy, and Planning Session, UGA, May 2023

Lead PI, National Zoning Atlas – Georgia Element, https://zoningatlas.org/georgia
- Recipient, UGA Law School Collaborative Research Seed Award, March 2023
- Submitted, NEH Digital Humanities Advancement Grant proposal, June 2023 (not awarded)
- Resubmitted, NEH Digital Humanities Advancement Grant proposal, June 2024 (not awarded)

Co-PI, Policy Group, Mississippi-Alabama-Georgia Network for Electric Vehicle Technologies (MAGNET) (collaboration UA, MS State, UGA)

Lead PI, Georgia E-Mobility Advancement Research for a Sustainable, Healthy, Innovative, and Fair Transition (GEARSHIFT)
- Recipient, UGA E-Mobility Initiative Seed Grant Award, May 2023

Co-PI, Understanding Past Carbon Cycles (UPCycle) to Inform Future Carbon Solutions Center
- Submitted, NSF Science and Technology Center grant proposal, Feb. 2023 (not awarded)

TEACHING

INSTRUCTOR OF RECORD

Climate Change Law. Law research seminar exploring landscape of domestic (U.S.) climate-relevant regulatory programs, litigation, and legislative efforts, with coverage of international governance and scientific and technical basis for regulation.

Renewable Energy Law & Policy. Survey on legal aspects of renewable energy development, especially solar and wind, including contracting and transactional counsel, oppositional litigation, and utility regulatory policymaking, including ratemaking and energy facility development incentive policy and design.

Environmental Law. Law survey course covering U.S. domestic regulatory regimes for environmental review, air and water pollution control, species protection, chemicals risk regulation, waste management, and contaminated site cleanup (NEPA, CAA, CWA, ESA, TSCA, RCRA, CERCLA).

Civil Procedure. Law survey course introducing rules of U.S. federal rules of civil practice.

COMMITMENT AND RECOGNITION

Coach, UGA National Environmental Law Moot Court Competition Team (2021-present)
- National finalists 2024; National semifinalists 2023, 2022

Early Career Fellow, UGA Teaching Academy Fellows Program (2022-23)

GUEST LECTURES

at Fordham:
"Congress and Climate Change," for Fordham SJD Colloquium, Mar. 2026

at University of Georgia:
"Lead Pollution and One Health", for Introduction to One Health, Oct. 2024 (two classes)
"Climate Change" for Global Environmental Politics, Oct. 2024
"Flint", for One Health Seminar, Feb. 2024
"Lead Pollution and One Health", for Introduction to One Health, Oct. 2023 (two classes)
"Studying Environmentalism and Conservatism," for Environmental Politics, Apr. 2023
"Atlanta Forest Defenders and the Criminalization of Protest," for Environmental Sociology, Mar. 2023
"Environmental Law," for Environmental Management and Sustainable Business Practices, Mar. 2023
"Lead Pollution and One Health", for Introduction to One Health, Nov. 2022 (two classes)

at U.C. Berkeley:
"Environmental Litigation" for International Environmental Politics (2019)
"Environmental Litigation" for Environmental Administration, Policy, and Law (2019)
"Questioning Scientific Positivism" for Bioethics (2019)
"Environmental Litigation" for International Environmental Politics (2018)
"Renewable Energy Policy" for Global Warming (2018)
"Climate and Energy Policy" for Energy & Society (2017)
"Environmental and Energy Law" for Energy & Civilization (2016)

SERVICE

Academic Service (External)

peer reviewer: *Nature Climate Change*, *Presidential Studies Quarterly*, *Carbon Management*, *Journal of Environmental Studies and Sciences*

Professional Service (External)

American Bar Association in-person delegate to UNFCCC COP29, Baku, Azerbaijan
American Bar Association Legal Education Task Force (climate change)

Academic Service (Fordham)

1L House Leader
member, evening division committee

Academic Service (UGA)

member, faculty hiring committee (2023-2024)
faculty representative, JED Student Mental Health and Wellness Strategic Planning (2022-2024)
panel moderator, UGA Law Red Clay Conference (Spring 2022, 2023, 2024)
panel moderator, Georgia Law Review Symposium (Spring 2023, 2024)
member, clinical faculty hiring committee (Spring 2023)
faculty advisor, UGA Environmental Law Association (2021-present)
advisory board member, UGA River Basin Center (2021-present)
faculty representative, UGA Law Libraries Committee (2022-23)
faculty representative, UGA Law Careers Committee (2021-22)

Public Service (at UGA Law)

host, Coastal Earth Day Celebration 2023 (Darien, GA)
advisor, UGA Extension solar development information resources project

Academic Service (U.C. Berkeley as graduate student representative)

Campuswide COVID-19 Financial Response and Basic Needs Workgroup (2020)
Chancellor's Task Force on Instructional Resilience (2019-2020)
Chancellors Advisory Committee on Student Services and Fees (2018-2020)
Search committee, U.C. Berkeley Vice Chancellor of Finance (2019-2020)
Search committee, Associate Vice Chancellor and Dean of Students (2019-2020)
Search committee, Executive Director, Student Union (2019-2020)
Search committee, CFO, Division of Student Services (2019)
Chancellor's Advisory Committee on Parking and Transportation (2016-2018)
U.C. Berkeley Student Union Board of Directors (2018-2020)
Lower Sproul Plaza Fee Committee (2018-2020)
Wellness Fee Advisory Committee (2018-2020)
Student Equity and Success Fee Committee (2018-2019)
The Green Initiative Fund Advisory Committee (2018-2019)
Life Safety Fee Committee (2018-2019)
Student Technology Fee Committee (2018-2019)
Educational Opportunity and Equity Fee Committee (2018-2019)
Course Materials Fee Committee (2018-2019)
Faculty Mentorship Award Committee (2016-2018)

AFFILIATIONS

member, New York State Bar
admitted to practice, Ninth Circuit Court of Appeals
member, ABA Section of Environment, Energy, and Resources
Board of Directors, Columbia Journal of Environmental Law
Board of Directors, University of California Berkeley Graduate Students Association

PRE-ACADEMIC CAREER

GRADUATE STUDIES

Graduate School Research Funding (U.C. Berkeley)

2017-2018. Researcher, California Energy Commission (San Francisco, CA). CEC Grant EPC 15-078.

2016. Policy Researcher, Office of Comm'r Carla J. Peterman, California Public Utilities Commission (San Francisco, CA)

2015-2016. Researcher, California Public Utilities Commission Energy Division

Graduate School Teaching Assistantships (U.C. Berkeley)

2020. U.S. History, American Civil War to Present (HIS 7B) (Rebecca McLennan). Undergraduate introduction to U.S. history and historical analysis.

2019. Environmental Administration, Policy, and Law (ESPM 60) (Alastair Iles). Undergraduate introduction to environmental regulatory administration and governance.

2019. Bioethics (ESPM 162) (Ken Worthy). Upper-division undergraduate introduction to ethical analysis of the scientific endeavor, with special attention to biological and environmental sciences.

2018. Environmental Philosophy and Ethics (ESPM 161) (Ken Worthy). Upper-division undergraduate introduction to ecologically-oriented philosophical writings and practices.

2017. International Environmental Politics (ESPM 169) (Kate O'Neill). Upper-division undergraduate introduction to environmental governance under United Nations regulatory frameworks.

2017. Energy and Society (ER 100/200) (Ranjit Deshmukh). Upper-division undergraduate and graduate survey of energy technology, governance, finance, economics, development, and analytical tools.

2017. Climate and Energy Policy (ESPM 102D) (Jonas Meckling). Upper-division undergraduate energy policy survey and analysis of energy and climate policies.

2016. Energy and Civilization (UGBA 193B/L&S 126) (Jamie Rector & Chris Rosen) (Fall 2016). Undergraduate energy survey course, part of UC Berkeley's "Big Ideas" multi-disciplinary curriculum.

PRIVATE PRACTICE OF LAW

Employment

2009-2014 Marten Law PLLC (Portland, OR). Environmental litigation.

2007-2009 Arnold & Porter LLP (New York, NY). Environmental group.

2006-2007 Willkie Farr & Gallagher LLP (New York, NY). Corporate and environmental groups.

CLE Seminars Taught

"Hydraulic Fracturing, Water Resources Issues" (Los Angeles, September 2013)
"Energy Policy in the Second Obama Administration" (Los Angeles, July 2013)
"Hydraulic Fracturing, Water Quality Issues" (Seattle, May 2013)
"Hydraulic Fracturing, Water Resources Issues" (Santa Barbara, February 2013)
"Klamath Basin Adjudication Update" (Portland, November 2012)
"NEPA and Transmission Lines" (Portland, August 2012)
"Hydraulic Fracturing, Emerging Water Resources Issues" (Houston, June 2012)
"Hydraulic Fracturing, Regulatory Overview and Trends" (Dallas, December 2011)

Professional Newsletter Publications

Hydraulic Fracturing: Latest Developments and Trends. *Marten Law Env't News* (Oct. 6, 2013).

BLM Revises Draft Regulations Governing Hydraulic Fracturing on Public and Tribal Lands: Comments Due August 23. *Marten Law Env't News* (July 15, 2013).

NEPA: California Federal Court Requires Full Environmental Impact Statement for BLM Leases Involving Hydraulic Fracturing. *Marten Law Env't News* (May 6, 2013).

Water Resources - Not Just Water Quality – Gains Attention of Opponents to Hydraulic Fracturing. *Marten Law Env't News* (Apr. 22, 2013).

Supreme Court Declines to Resolve Interplay Between CERCLA Cost Recovery and Contribution Provisions, *ABA SEER Superfund and NRD Litigation Committee Newsletter* (Dec. 2012).

Hydraulic Fracturing in California: Oil Boom on the Horizon; Groups Seek Statewide Injunction Pending Review; State Considering Regulation. *Marten Law Env't News* (Nov. 9, 2012).

Hydraulic Fracturing Cumulative Impacts Must Be Considered in NEPA Review of Gas Pipeline, Project Opponents Maintain. *Marten Law Env't News* (Sept. 25, 2012).

EPA To Regulate Air Emissions from Hydraulic Fracturing as Industry Comes Under Scrutiny. *Marten Law Env't News* (May 29, 2012).

Local Bans on Hydraulic Fracturing Upheld in New York State, Struck Down in West Virginia. *Marten Law Env't News* (Apr. 10, 2012).

Let It Snow, Let It Snow - Ninth Circuit Decisions Show Why Meeting the Merits in NEPA Challenges May Be Better Than Fighting the Process. *Marten Law Env't News* (Mar. 19, 2012).

Closely Watched *Sackett* Case Argued in Supreme Court. *Marten Law Env't News* (Jan. 17, 2012).

U.S. Supreme Court Reiterates Deference Given EPA Pesticide Decisions. *Marten Law EN* (July 13, 2011).

The Klamath Adjudication: Will It Ever End? *Marten Law Env't News* (July 7, 2011).

Maine Supreme Court Decision In Line With Trend Rejecting Informal Agency Decision-Making. *Marten Law Env't News* (May 12, 2011).

California's Cap and Trade Program Set Back by Injunction. *Marten Law Env't News* (Mar. 23, 2011).

EPA Draft Plan to Study Potential Drinking Water Impacts of Hydraulic Fracturing Intensifies National Debate on Natural Gas Drilling. *Marten Law Env't News* (Feb. 25, 2011).

District Court Rules CERCLA § 104(e) Letter Triggers Duty to Defend in Oregon. *Marten Law Env't News* (Nov. 19, 2010).

Construction Begins on Pipeline to Bring Rocky Mountain Gas to West Coast; Legal Challenges Linger. *Marten Law Env't News* (Oct. 22, 2010).

Fractured: The Road to the New EPA "Fracking" Study. *Marten Law Env't News* (Sept. 17, 2010).

House Enacts Amendments to Oil Pollution Act, Outer Continental Shelf Lands Act; Measure Awaits Senate Action. *Marten Law Env't News* (Aug. 2, 2010)

Of Boiler Rules and Biofuels: Biomass Energy Faces New Emissions Restrictions, Regulation Under Waste Laws. *Marten Law Env't News* (July 22, 2010)

Responding to Limits on Greenhouse Gas Emissions: Three Questions for Companies in the Electric Power Sector. *Marten Law Env't News* (May 26, 2010).

District Court Applies *BNSF* Arranger Liability Test, Dismisses CERCLA Claim Against Dry Cleaning Machine Manufacturers. *Marten Law Env't News* (Apr. 1, 2010).

Oregon Legislature Limits Energy Tax Credits. *Marten Law Env't News* (Mar. 18, 2010).

EPA Announces Plans to Require Financial Assurance Under CERCLA for Chemical, Refining and Electrical Industries. *Marten Law Env't News* (Jan. 20, 2010).

The Year Ahead in Energy and Environmental Law: Energy. *Marten Law Env't News* (Jan. 14, 2010).

Break on Through: Tenth Circuit Allows Non-Settling PRP To Intervene in CERCLA Settlement Proceedings. *Marten Law Env't News* (Dec. 23, 2009).

Portland, Oregon Releases Aggressive Municipal Climate Plan. *Marten Law Env't News* (Dec. 2, 2009).

LAW SCHOOL

2005-2006 Clinic Researcher, Columbia Law School Environmental Law Clinic (New York, NY)

2004-2005 Research Assistant for Prof. Samuel Issacharoff, Columbia Law School (New York, NY)
Recipient, Warner Gardner Summer Research fellowship for outstanding research assistance.